

60	Diliberto vs. Surgical Care Affiliates, LLC 23-01358521	Motion for Leave to File Amended Complaint The Motion for Leave to File a Third Amended Complaint filed by Plaintiff Jay P. Diliberto, M.D., is DENIED, for lack of service. The instant Motion for Leave to Amend was filed on August 18, 2026 (ROA No. 581); however, the Motion is not accompanied by proof of service. Additionally, while California Rules of Court rule 3.1300(c) allows a proof of service to be filed “no later than five court days before the time appointed for the hearing,” Plaintiff did not comply with this rule. Given the motion has not been opposed, the Court cannot find this service defect has been waived.
61	Snell vs. Costco Wholesale Corporation 23-01354070	1. Motion to Compel 2. Motion for Summary Judgment and/or Adjudication Motion to Compel Defendant Costco Wholesale Corporation to Pay All Discovery Referee Fees Plaintiff Mark Snell’s motion to compel Defendant Costco Wholesale Corporation (“Costco”) to pay all fees and costs of the discovery referee appoint in the instant action is DENIED. On February 12, 2025, Plaintiff filed a motion seeking terminating, issue, evidentiary, and monetary sanctions against Defendant Costco. (ROA 254.) In its opposition to the sanctions motion, Costco requested the appointment of a discovery referee. (See ROA 276.) On August 1, 2025, the Court granted Costco’s request to appoint a discovery referee. (ROA 283.) Among other things, the Court found that “Plaintiff has taken an aggressive approach to discovery which undermines the intent for civil discovery to operate with minimal judicial intervention.” (Id.) As examples, the Court cited Plaintiff’s filing of the sanctions motion rather than engaging in further meet and confer efforts, Plaintiff’s refusal to sign a protective order, and the seven discovery motions Plaintiff had filed to date. (Id.) The Court further found that appointing a discovery referee would ensure that the discovery process is conducted efficiently and stated that it would issue a separate order describing the method for the process of appointing the discovery referee. (Id.) On August 6, 2025, the Court issued an order regarding the appointment of the discovery referee. (ROA 285.) The order directed that: “Counsel shall meet and confer to determine if they are able to submit a stipulation for the appointment of a specific qualified individual to act as a discovery referee. The stipulation shall meet the requirements of CCP

sections 639 and 640. If counsel cannot agree on the selection of a referee within 30 days of this ruling and submit a stipulation, each party shall submit the name of three nominees for appointment pursuant to CCP Section 640(b). The Court will select a referee against whom there is no legal objection. [¶] After the 30-day period, if parties do not submit a list with proposed names, then the Court will appoint one.” (Id.)

On August 25, 2025, Plaintiff’s counsel advised Defendants’ counsel via email that Defendants’ proposed discovery referees “are too expensive and not worth it. We are going to send you cheaper ones who aren’t affiliated with any of the major ADR companies.” (MacRill Decl. ¶ 5, Exh. C [ROA 326].) Plaintiff’s counsel, however, did not provide Defendants’ counsel with any proposed alternative referees. (Id.; see also ROA.)

On September 5, 2025, Defendants submitted their proposed list of discovery referees to the Court. (ROA 290.) Defendants’ list included the Hon. Elizabeth R. Feffer, Ret. (Id.) Plaintiff did not submit any proposed discovery referees to the Court. (See ROA.) Similarly, Plaintiff did not file any objections to the appointment of a discovery referee or to the referees proposed by Defendants. (See id.)

On October 2, 2025, the Court entered an Order Appointing Referee (“Referee Order”). (ROA 291.) The Referee Order appointed Hon. Elizabeth R. Feffer (Ret.) as referee pursuant to Code of Civil Procedure section 639, stating “[i]t is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation.” (Id.) The Referee Order also indicates that “[n]o party has established an economic inability to pay a pro rata share of the referee’s fees” and ordered “[a]ll parties to pay equal shares of the referee’s fees.” (Id.)

On October 14, 2025, the Honorable Elizabeth Feffer, Retired Judge of Los Angeles County Superior Court, consented to act as Referee in the matter. (ROA 294.)

Plaintiff filed the instant motion to compel Costo to pay all discovery referee fees and costs on December 3, 2025. (ROA 296.)

Timeliness of Plaintiff’s Claim

Code of Civil Procedure section 639, subdivision (a)(5), provides the trial court may appoint a referee to hear and decide discovery motions and to apportion payment of the referee’s fees among the parties. Code of Civil Procedure section 639, subdivision (d)(6)(A), requires the trial court to determine whether any party “has established an economic inability to pay a pro rata share of the referee’s fee.” “[I]n determining whether a party has established an inability to pay the fees, [the court] shall consider, among other things, the estimated cost of the referral and the

		impact of the proposed fees on the party’s ability to proceed with the litigation.” (Code Civ. Proc., § 639, subd. (d)(6)(B).) In addition, Code of Civil Procedure section 645.1, subdivision (b), provides the court, in appointing a referee under section 639, “may order the parties to pay the fees of referees ... in any manner determined by the court to be fair and reasonable, including an apportionment of the fees among the parties.” In <i>McDonald v. Superior Court</i> (1994) 22 Cal.App.4th 364, the Court of Appeal held “that whenever the issue of economic hardship is raised before the commencement of the referee’s work, the referring court must determine a fair and reasonable apportionment of reference costs before issuing its order.” (Id. at p. 370.) Here, neither party has indicated whether the discovery referee, Hon. Elizabeth R. Feffer (Ret.), has commenced with work in this matter. Nevertheless, neither McDonald nor Code of Civil Procedure section 639 forecloses reconsideration of a fair and reasonable apportionment of costs after issuance of a referee order. The Court exercises its discretion to determine whether Plaintiff has established an economic inability to pay a pro rata share of the referee’s fee. <u>Plaintiff’s Claimed Inability to Pay Referee Fees</u> As an initial matter, the Court notes that there were several opportunities for Plaintiff to demonstrate any inability to bear the costs of the discovery reference. Plaintiff and his counsel, however, did not present any evidence of indigency or inability to pay until after the Referee Order was issued. In determining whether a particular party has established an inability to pay the referee’s fee, the court must consider only the ability of the party, not the party’s counsel, to pay that fee. (Code Civ. Proc., § 639, subd. (d)(6)(B).) A party that is proceeding in forma pauperis is deemed to have an economic inability to pay the referee’s fee. (Id.) A determination of economic inability to pay the fee is not limited to parties that proceed in forma pauperis. For parties that do not have fee waivers, the court may consider the estimated cost of the referral and the impact of the proposed fee on the parties’ ability to proceed with the litigation. (Id.) Plaintiff submitted a declaration in support of his claimed inability to pay referee fees. (See ROA 296.) Plaintiff declares that he is an individual of modest financial means and his financial resources are limited. (Snell Decl. ¶ 2.) Plaintiff is retired from his primary career and currently relies on a fixed income stream with significant monthly obligations. (Id.) Plaintiff states that requiring him to pay any portion of the discovery referee’s fees would impose significant financial hardship and that he does not have the financial capacity to contribute to the referee fees without seriously jeopardizing his ability to meet essential obligations.
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		(Id. at ¶ 3.) Plaintiff declares that if he is compelled to pay any share of the referee fees, he would potentially be required to incur debt or delay payment of necessary expenses, including the potential need to seek bankruptcy protection. (Id. at ¶ 4.) The costs are beyond his practical ability to pay and would hinder his ability to participate meaningfully in discovery and prosecute his case. (Id.) Plaintiff's declaration is insufficient to demonstrate an inability to pay any referee fees. Without any detail or explanation, Plaintiff's conclusory statements have limited credibility. Although a sworn statement of hardship with some financial information may be sufficient, Plaintiff's declaration lacks the supporting financial context. (See <i>Hood v. Superior Court</i> (1999) 72 Cal.App.4th 446, 449-450 [sworn declaration and statement of income and expenses were sufficient to justify a referee fee waiver].) Although the court offered Plaintiff the opportunity to file a supplemental declaration with additional financial information or financial statements (ROA 354), Plaintiff did not file any supplemental information. (ROA 354 [07/17/26 Minute Order].) The motion is denied. Defendant Costco Wholesale Corporation to give notice. Defendants Costco Wholesale Corporation, Brian McCutcheon, and Lashan Ford's motion for summary judgment in favor of Defendants and against Plaintiff Mark Snell is DENIED. Plaintiff's objections to the Declaration of Amber Joseph are overruled. Defendants' objections to the Declaration of Daniel Conte are overruled. Defendants' objections to the Declaration of Mark Snell are overruled. Objection Nos. 6, 7, 10, 12, 17, 19, and 20 to the Declaration of Jerry Birnbach are overruled. The remaining objections are sustained. "Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Civil Proc. Code, § 437c, subd. (c).) "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, . . . or that one or more defendants either owed or
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		did not owe a duty to the plaintiff or plaintiffs. (Civil Proc. Code, § 437c, subd. (f)(1).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at 851.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar v. Atlantic Richfield Co.</i>, supra, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) <u>Motion for Summary Adjudication</u> Although Defendants style their motion as a motion for summary judgment or, in the alternative, summary adjudication, Defendants’ motion papers do not comply with California Rule of Court 3.1350, subdivision (b). Defendants’ notice of motion states: “In this alternative, Defendants will, and hereby do, move for summary adjudication of the following issues individually” and proceeds to list 16 issues (Notice of Motion at 2:27-4:14.) In light of the number of issues for which Defendants seek adjudication, the lack of compliance with rule 3.1350, subdivision (b) hinders Plaintiff’s ability to respond and impairs the Court’s ability to marshal evidence to show the material facts in dispute for Issue Nos. 1-14. The motion for summary adjudication is DENIED as to Issue Nos. 1-14. Issue Nos. 15 and 16 address the third cause of action for product liability and the fourth cause of action for negligent hiring and supervision, respectively. (Notice of Motion at 4:9-14.) These causes of action are stated specifically in the Notice of Motion and are sufficiently identified in Defendants’ Separate Statement. Defendants’ failure to transfer the language verbatim is not prejudicial. <u>First Cause of Action for Negligence and Second Cause of Action for Premises Liability</u> The Complaint alleges Defendants manufactured, distributed, and sold the Lifetime outdoor storage shed. (Compl. ¶ 18.) The Lifetime outdoor storage shed packaged in large boxes, which should have contained clear and visible warning labels regarding the potential risks associated with the product. (Id. at ¶ 19.) Defendants failed to provide adequate warning labels on the boxes and further failed to position the boxes in a manner that made the warning labels easily noticeable or accessible to customers. (Id. at ¶ 21.) The Complaint further alleges Defendants negligently stacked the boxes in an unsafe manner. (Id. at ¶ 22.) As a
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		result of the improper stacking, when a customer attempted to pull a box off of the stack, the boxes became unstable and resulted in the box containing the Lifetime outdoor storage shed falling on Plaintiff. (Id. at ¶ 23.) The failure to warn customers, make warning labels apparent, properly stack the boxes, and post warning signs directing patrons to seek assistance from a team member were all breaches of Defendants’ duty of care. (Id. at ¶ 24.) The failures directly contributed to Plaintiff’s injuries and constituted a substantial factor in causing Plaintiff harm. (Id. at ¶ 25.) “ ‘The elements of a cause of action for premises liability are the same as those for negligence.’ [Citation.] Accordingly, the plaintiff must prove, ‘a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.’ ” (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207.) Premises liability is grounded in possession and control of the premises, and “control is defined as the power to prevent, remedy or guard against the dangerous condition. [Citation.]” (Colonial Van & Storage, Inc. v. Superior Court (2022) 76 Cal.App.5th 487, 497 [internal quotation marks omitted].) “It is well established in California that although a store owner is not an insurer of the safety of its patrons, the owner does owe them a duty to exercise reasonable care in keeping the premises reasonably safe. [Citation.]” (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205.) “A store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved. [Citation.] If the owner operates a self-service grocery store, where customers are invited to inspect, remove, and replace goods on shelves, “the exercise of ordinary care may require the owner to take greater precautions and make more frequent inspections than would otherwise be needed to safeguard against the possibility that such a customer may create a dangerous condition by disarranging the merchandise” and creating potentially hazardous conditions. [Citation.]” (Id.) “Businesses have a common law duty of ordinary care to their customers that extends to every area of the store in which they are likely to shop.” (Hassaine v. Club Demonstration Services, Inc. (2022) 77 Cal.App.5th 843, 847.) Dangerous Condition The Complaint alleges Defendants breached their duty of care by stacking boxes in an unsafe manner and by failing to provide adequate warning labels on the boxes. (Compl. ¶ 22.) Defendants contend they did not breach any duty to Plaintiff because they were not negligent in the control, use, inspection, management, or maintenance of the subject warehouse at the time of the incident. The boxes were stacked safely, and Defendants did not create the dangerous
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	condition. In support of their argument, Defendants submitted a declaration by their expert, Amber Joseph, in which she concluded Costco maintained the premises in a reasonably safe condition. (Defendants Compendium of Evidence (“COE”), Exh. K, Joseph Decl. ¶ 22.) Joseph stated that there is no evidence that the subject box or its stack was unstable prior to the customer’s intervention and concluded the subject box became unstable only after the customer attempted to remove it from the top of the stack. (Id.) Defendants also provided Plaintiff’s deposition in which he recounted the incident. (Defendants COE, Exh. E, Snell Depo. Tr. Vol. I at 54:4-55:23.) Defendants met their initial burden to show Defendants did not breach their duty of care. Jill Wyatt, Costco’s National Safety Manager supporting US operations, testified that Costco likes to put merchandise on the floor as they are stacked by the supplier. She would expect that the shed boxes would be stacked in the amount Lifetime sent the items. (Plaintiff COE, Exh. DD, Wyatt Decl. at 6:21-22, 54:18-55:3.) This protocol is to protect the safety of Costco’s members and employees and also to meet the structural packaging specs and tech data. (Id. at 55:55:4-8.) Plaintiff’s expert, Jerry Birnbach, identified Figure 8 as the manufacturer’s own specification sheet. (Plaintiff COE, Exh. AA, Birnbach Decl. ¶ 7a, Fig. 8.) Figure 8 indicates the “Cartons Per Unit Load” is 4 and includes a diagram showing four cartons stacked on a pallet. (Id.) Plaintiff has also submitted evidence that the boxes are between 11-12 inches in height, about 94 inches in length, and 32 inches in width, with the weight being at least 223.5 lbs. (Plaintiff COE, Exh. AA, Birnbach Decl. ¶ 7a., Fig. 8, 10-12.) The dimensions provided for the boxes in Figure 11 (94”x32”x11” or 94”x32”x12”) is commensurate with the dimensions given for the assembled shed in Figure 12 (58”Dx94”Wx84”H) and the model shed in the provided photos. (Compare Plaintiff COE, Exh. AA, Birnbach Decl. ¶ 7a, Fig. 8, 10-12 with Defendants NOL, Exh. E, Snell Depo. Tr. Vol. I, Exhs. 2, 2.1, 2.2, 2.3, 2.4.) Defendants acknowledge that the shed boxes are oversized, and that a combination of factors, including the length of the box and its elevation above the floor is consistent with it being heavy to handle, and awkward. (Plaintiff COE, Exh. DD, Wyatt Decl. at 59:4-11; Defendants COE, Exh. K, Joseph Decl. ¶ 17.) Plaintiff’s expert declared that stacking the shed boxes six units high created an inherently dangerous condition. (Plaintiff COE, Exh. AA, Birnbach Decl. ¶¶ 7a-b, i.) Birnbach opined that Costco “breached the standard of care imposed upon retail merchants not only by allowing its employees to stack the boxes that high, but also by allowing customers to attempt to remove the shed kits themselves.” (Id. at ¶ 7b.) Plaintiff met his shifted burden to show a triable issue of material fact regarding the existence of a dangerous condition. A reasonable factfinder could conclude Defendants did not safely stack the shed boxes in an aisle where customers are invited to inspect and
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remove goods. Additionally, where a store owner or its employees create a hazardous condition, the owner cannot claim it lacked notice of the condition. (*Hatfield v. Levy Bros.* (1941) 18 Cal.2d 798, 806; see also *Getchell v. Rogers Jewelry* (2012) 203 Cal.App.4th 381, 385 [where dangerous condition is created by employees of the defendant, defendant is charged with notice of the condition].)

Open and Obvious

Defendants next contend that if the stacked shed boxes constitutes a dangerous condition, then it was an open and obvious condition such that Defendants did not have a duty to warn or remedy the condition.

“Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.” (*Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393.) Defendants set forth evidence that the box at issue “along with the stack were stored on commercial-grade pallets stacked six high in a static position.” (Defendants COE, Exh. K, Joseph Decl. ¶ 20.) Plaintiff testified that he did not think the subject box would be as heavy as it was given how high the shed boxes were stacked. (Defendants NOL, Exh. E, Snell Depo. Tr. Vol. I at 55:7-9, 66:18-21.) Plaintiff has shown there is a triable issue of fact as to whether the stacked shed boxes were an obviously unsafe condition.

Even if an unsafe condition is open and obvious, a landowner may have a duty to remedy the condition, “when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 447; see also *Osborn v. Mission Ready Mix* (1990) 224 Cal.App.3d 104, 122 [“Thus, although the obviousness of a danger may obviate the duty to warn of its existence, if it is foreseeable that the danger may cause injury despite the fact that it is obvious (for example, when necessity requires persons to encounter it), there may be a duty to remedy the danger, and the breach of that duty may in turn form the basis for liability, if the breach of duty was a proximate cause of any injury.”].)

The question of whether it was foreseeable that a customer would try to remove the shed box from the stack despite the fact that it may be an obviously unsafe condition presents a triable issue of fact. “As a warehouse retailer, Costco is in the business of displaying products for customers to assess, select, and purchase.” (Plaintiff COE, Exh. AA, Birnbach Decl. ¶ 5, Exh. 5, Expert Report at p. 4.) “Many of the products available at Costco are bulky and heavy” and “Costco invited customers to attempt to heft the shed kits themselves” (Id.) A factfinder may reasonably conclude based on the evidence that injury to a customer was

foreseeable. Accordingly, a jury must resolve this factual issue before the court may reach the legal conclusion that Defendants owed a duty to remedy the stacked boxes.

Rescue Doctrine

Defendants also contend Plaintiff cannot establish the causation element because the unidentified customer's conduct and Plaintiff's intervention broke the causal chain. Plaintiff contends that the rescue doctrine permits recovery. " '[T]he rescue doctrine varies the ordinary rules of negligence ... [as] it permits the rescuer to sue on the basis of defendant's initial negligence toward the party rescued ...' (*Solgaard v. Guy F. Atkinson Co.* (1971) 6 Cal.3d 361, 368, 99 Cal.Rptr. 29, 491 P.2d 821.) '[P]ersons injured in the course of undertaking a necessary rescue may, absent rash or reckless conduct on their part, recover from the person whose negligence created the peril which necessitated the rescue.' (*Ibid.*) In order to assert the rescue doctrine, the rescuer must show that there was someone in peril and that he acted to rescue such person from the peril. (*Henshaw v. Belyea* (1934) 220 Cal. 458, 463–464, 31 P.2d 348 (*Henshaw*).)" (*Tucker v. CBS Radio Stations, Inc.* (2011) 194 Cal.App.4th 1246, 1252.) "The theory which underlies the rescue rule is, in essence, that 'rescuers, as a class, are always foreseeable when the defendant's negligence endangers anyone.' [Citation.] Thus, if defendant creates a situation of peril for one person (the victim), defendant properly may be charged with having proximately caused not only that peril but also the rescue and any injury suffered during its course. [Citation.]" (*Solgaard*, supra, 6 Cal.3d at p. 368.) "[A]lthough the rescuer may be said to have willingly exposed himself to the danger, such act does not eliminate or excuse the culpability created by the [defendant's] negligence. (*Sears v. Morrison* (1999) 76 Cal.App.4th 577, 580.)

Here, as discussed above, there are triable issues of fact regarding Defendants' negligence in creating a dangerous condition. Additionally, the record contains substantial evidence from which one could conclude that there was a rescue attempt by Plaintiff. (See e.g. Defendants COE, Exh. E, Snell Depo. Tr. Vol. I at 54:4-55:23.) Whether Defendants' negligence was the cause of the rescue attempt is a question for the factfinder. (*C.F. v. Alternative Family Services, Inc.* (2026) 120 Cal.App.5th 1208, 1230.)

Based on the foregoing, Defendants have not shown the action has no merit. The motion for summary judgment is denied.

Third Cause of Action for Product Liability (CACI 1205)

The third cause of action for product liability alleges Costco manufactured, distributed, and sold the Lifetime outdoor storage shed. (Compl. ¶ 40.) The Lifetime outdoor storage shed was accompanied by

		packaging or labels that did not contain clear and visible warning labels regarding the potential risks associated with the product. (Id. at ¶ 41.) The potential risks associated with the Lifetime outdoor storage shed were not apparent or adequately communicated to customers due to the absence or lack of visibility of warning labels, which led to ordinary customers not recognizing the potential risks. (Id. at ¶¶ 42-43.) The elements of a cause of action for strict liability failure to warn are: (1) defendant manufactured the product; (2) the product had potential risks that were known or knowable in light of the scientific knowledge that was generally accepted in the scientific community at the time of manufacture; (3) the potential risks presented a substantial danger when the product was used or misused in an intended or reasonably foreseeable way; (4) ordinary consumers would not have recognized the potential risks; (5) defendant failed to adequately warn of the potential risks; (6) plaintiff was harmed; and (7) the lack of sufficient warnings was a substantial factor in causing plaintiff's harm. (CACI No. 1205; see also <i>Anderson v. Owens-Corning Fiberglas Corp.</i> (1991) 53 Cal.3d 987, 995–1004.) “There is no duty to warn of known risks or obvious dangers.” (<i>Chavez v. Glock, Inc.</i> (2012) 207 Cal.App.4th 1283, 1304.) Defendants contend Plaintiff cannot show that the lack of sufficient warnings was a substantial factor in causing Plaintiff's harm. It is undisputed the “potential risk” at issue is the Lifetime outdoor shed's bulk and heavy weight. (See Plaintiff COE, Exh. AA, Birnbach Decl. ¶ 7d, Exh. 5, Expert Report at p. 5; Exh. BB, Snell Decl. ¶¶ 2-3.) Defendant provided evidence demonstrating that, at the time of the incident, Plaintiff understood that he could ask a Costco employee for assistance for whatever reason. (Defendants Notice of Lodging (“NOL”), Exh. E, Snell Depo. Tr. Vol. I at 42:8-16.) Plaintiff looked for a Costco employee when Plaintiff saw the customer was struggling. (Id. at 56:5-11, 66:9-11.) Further, Defendant argues Plaintiff appreciated the risks of helping the other customer; Plaintiff could see the other customer struggling with the box. (Id. at 54:17-18, 54:22, 56:5-6, 59:21-60:1, 63:5-6, 63:11, 66:11.) Plaintiff declared that at the time of the incident, he “was not aware of the weight or actual dimensions of the subject shed box that caused [his] injury” and that “no Costco employee made it known to [Plaintiff] that they were able (or supposed) to help me retrieve any of the boxes, much less was there any displayed signage to advise me of such, or otherwise indicate the boxes were too heavy or too large for an individual like [himself] to handle.” (Plaintiff COE, Exh. BB, Snell Decl. ¶ 3.) Moreover, Plaintiff's testimony indicates Plaintiff observed the customer struggle with the shed box while the box was stuck underneath the model shed's roof. (Defendants NOL, Exh. E, Snell Depo. Tr. Vol. I at 54:17-22, 59:21-60:1, 63:5-10, 66:11-13, 92:22-93:5.) Plaintiff did not register the heavy
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weight of the box until the box started to come off the stack. (Id. at 55:2-9, 66:18-20.) There is a triable issue of fact as to whether the lack of warnings was a substantial factor in causing Plaintiff's harm. The motion for summary adjudication is denied as to Issue No. 15.

Fourth Cause of Action for Negligent Hiring and Supervision

The fourth cause of action for negligent hiring and supervision alleges Costco negligently hired, supervised, or retained Zandra Davidson and DOES 11-25, that Davidson and DOES 11-25 were unfit to perform their job duties, and that Defendants knew or should have known that Davidson and DOES 11-25 were unfit and that their unfitness created a risk to invitees such as Plaintiff. (Compl. ¶ 50.) The Complaint further alleges Costco and DOES 1-10 failed to properly and completely conduct a comprehensive pre-employment interview process and reference checks as to Zandra Davidson and DOES 11-25 and ignored the content of probationary period job performance evaluations, other periodic job performance evaluations and/or disciplinary processes as to Zandra Davidson and DOES 11-25. (Id. at ¶¶ 52-53.)

"California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the fact that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. [Citation.]" (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054 (Doe).) " " "Liability results ... not because of the relation of the parties but because the employer antecedently had reason to believe that an undue risk of harm would exist because of the employment...." [Citation.]" [Citations.]" (*Federico v. Superior Court* (1997) 59 Cal.App.4th 1207, 1214.)

Defendants contend Plaintiff cannot establish an essential element of negligent supervision because no employee was involved in the incident. Defendants cite to Plaintiff's testimony that he did not see any Costco employees to assist the struggling customer. (Defendants NOL, Exh. E, Snell Depo. Tr. Vol. I at 66:9-11.)

Defendants did not meet their initial burden to show the negligent supervision cause of action has no merit. As previously discussed, there are triable issues of fact regarding whether Defendants created a dangerous condition by stacking the shed boxes in an unsafe manner. That no Costco employees were present during the subject incident does not absolve Defendants from their duty to supervise or train employees to safely position the shed boxes. The motion for summary adjudication is denied as to the fourth cause of action.

Individual Defendants

		In their Reply, Defendants assert that Plaintiff's Opposition does not identify admissible evidence that individual Defendants Brian McCutcheon and Lashan Ford personally created the condition, knew of it before the incident, directed the customer's conduct, or caused Plaintiff's injury. (ROA 368 at 11:16-20.) Arguments concerning the individual Defendants were not raised in Defendants' opening brief and, thus, are forfeited. "Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the [responding party] of an opportunity to counter the argument." (<i>American Drug Stores, Inc. v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453.) Additionally, as the parties moving for summary judgment, Defendants bear the burden of persuasion that there is no triable issue of material fact and that they are entitled to judgment as a matter of law. (<i>Aguilar</i>, supra, 25 Cal.4th at p. 850.) They have not met this burden here. To the extent Defendants Brian McCutcheon and Lashan Ford move for summary judgment, the motion is denied. Plaintiff to give notice.